

**BEFORE THE FEDERAL MARITIME COMMISSION
WASHINGTON, D.C.**

WAY2GO CARGO CORP.,
Complainant,

v.

Docket No: 25-14

OAK WAY CARGO, LLC,
Respondent.

AMENDED MOTION TO ISSUE SUBPOENAS TO NON-PARTIES

Complainant, Way2Go Cargo Corp. (“Way2Go” or “Complainant”) by and through undersigned counsel and pursuant to 46 C.F.R. § 502.131, hereby file this Amended¹ Motion to Issue Subpoenas to Non-Parties, and in support thereof states as follows:

1. On July 25, 2025, Way2Go initiated the above captioned matter against Respondent, Oak Way Cargo (“Oak Way” or “Respondent”).

2. Way2Go’s Complaint against Oak Way centers on Oak Way’s violations of the Shipping Act, including, *inter alia*, operating as an ocean transportation intermediary (“OTI”) without a license and the unauthorized use of Way2Go’s FMC license, identity, and credentials.

3. On November 26, 2025, Way2Go commenced discovery in this action by propounding its Interrogatories and Request for Production upon Oak Way.

4. However, in order to meet its burden in proving that Oak Way has violated and continues to violate the Shipping Act, Way2Go requires documents from non-parties.

5. Upon information and belief, the non-parties, including ocean carriers, customs brokers, and customers that participated in or received shipments arranged or controlled by Oak

¹ Complainant files this amended motion to include the Subpoenas, which have been revised to incorporate changes to the Subpoenas originally submitted with the Complainant’s December 31, 2025, as requested by the ALJ via email to the parties on January 5, 2026.

Way Cargo, have documents related to Oak Way's shipping operations that remain in the possession of the non-party vendors; meaning such documents could not be produced in the ongoing discovery between the parties, as Way2Go and Oak Way do not have access to them.

6. To this end, Way2Go must issue subpoenas to these non-party vendors to obtain these necessary shipping documents.

7. The Commission and the Administrative Law Judge have authority to issue subpoenas in this proceeding pursuant to 46 C.F.R. § 502.131, which authorize the issuance of subpoenas on behalf of the Commission for the production of documents relevant to matters pending before it.

8. Attached hereto as **Exhibits 1 through 9** are the proposed subpoenas (the "Subpoenas"), which Way2Go tenders as the original and one copy of each subpoena as required by 46 C.F.R. § 502.131(a).

9. The documents sought in the Subpoenas are necessary to prove that Oak Way continues to operate as an OTI without a FMC license, continues to implicate Way2Go's FMC license on its shipments through an unauthorized consignee designation, and continues to exert control over shipments in Way2Go's name, all of which are violations of the Shipping Act and demonstrate the harms that Way2Go continues to suffer as a result of the violations.

10. The proposed subpoenas are narrowly limited in time and scope, are directed only to documents maintained in the ordinary course of business, and do not require non-parties to perform analysis, render opinions, or create new records. Way2Go seeks only objective shipping documents necessary to establish how Oak Way Cargo held itself out in connection with specific shipments, thereby minimizing burden on non-parties.

11. Way2Go is amenable to appropriate confidentiality protections governing any materials produced pursuant to the subpoenas, including limitations on use to this proceeding and designation of sensitive commercial information as confidential or attorneys' eyes only, as the Administrative Law Judge may deem appropriate.

12. Therefore, Way2Go requests that the Commission enter an Order granting the issuance of the Subpoenas to the non-parties as attached in Exhibits 1 through 9.

13. The Subpoenas are narrowly tailored to request documents related to Oak Way's violations of the Shipping Act.

14. Further, issuing the Subpoenas will not unduly prejudice either party, and 46 C.F.R. § 502.131 permits the issuance of non-party subpoenas in the course of discovery for an action before the Commission.

WHEREFORE, Complainant, Way2Go Cargo Corp., requests that the Commission enter an Order granting the Motion to Issue Subpoenas to Non-Parties, issue the Subpoenas attached as Exhibits 1 through 9, and grant any other relief the deemed just and proper.

Dated: January 5, 2026

Respectfully submitted,

EPGD Attorneys at Law, P.A.
777 SW 37th Ave., Ste. 510
Miami, FL 33135
T: (786) 837-6787
F: (305) 718-0687
jennifer@epgdlaw.com

BY: /s/ Jennifer S. Roldan
Jennifer S. Roldan, Esq.

CERTIFICATE OF SERVICE

I **HEREBY CERTIFY** that a true and correct copy of the foregoing was filed via electronic mail upon the Office of the Secretary at secretary at secretary@fmc.gov and served upon all counsel of record for OAK WAY CARGO, LLC at zkass@b2b.legal on this 5th day of January 2026.

BY: /s/ Jennifer S. Roldan
Jennifer S. Roldan, Esq.